

STUDENT TRANSPORTATION

This Regulation is designed to supplement School Board Policy 6210 "Student Transportation" by outlining the processes that will be followed to address the demands on transportation resources and ensure fair and equitable service delivery for Loudoun County Public Schools (LCPS) students. This regulation guides service delivery consistent with federal and state law, LCPS policy and nationwide best practices.

A. Definitions

1. Alternate Transportation. The provision of transportation to/from a location within the student's assigned school zone that is not the bus stop assigned to the residential address contained in the student information system record. This includes transportation for students in day care or have multiple residences.
2. Attendance Zone. The geographical area set by law or the governing body of a public school that entitles a student to attend a certain public school.
3. Collector Road. A road that has a posted speed limit greater than 25 mph and serves to move traffic from one residential area to another residential area or to another primary road or arterial road or highway primarily used for through traffic.
4. Cul-de-sac. A dead-end street with a large paved circular area at the end (standard size is ninety feet in diameter) with only one outlet and no other intersecting streets. Where there are intersecting streets, only the portion of road beyond the last intersecting street is considered the cul-de-sac.
5. Dead-end Street. The end of a street, alley, service road, or road that has only one outlet and no other intersecting streets.
6. Landscape Buffer. The space between the travel portion of the road and the sidewalk, walk route or waiting area. Normally an area comprised of grass, gravel, concrete or open space, but may include untraveled portions of the road surface in rural settings where there are no sidewalks or shoulders.
7. Physical Barrier. Any obstruction, such as a guardrail, wall, ditch, tree, hill, pole, or other fortification that separates vehicles on the highway from students waiting for the bus and provides sufficient protection against a student being struck.
8. Posted Speed. Speed limit that is enforceable by law.
9. Primary Road. The road which the front of the house faces or is proposed to face.
10. Residential (local) Road. A local road that is 25 mph or less and only provides access to residences.

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11. Safe distance. The distance equal to or greater than the distance required for a driver of a vehicle to come to a stop after an object becomes visible, including the distance traveled during the driver's perception and reaction time and the braking distance. On dry, level paved surfaces, the average stopping distance as defined by Code of Virginia § 46.2-880 is used. In rural settings or on unpaved or unimproved roads, the Federal Highway Administration Manual on Uniform Traffic Control Devices (MUTCD) standard of ten (10) times the posted or legal speed limit is used.

12. Service Address. The address of record contained within the student information system.

13. Unusual Safety Hazard. An unavoidable source of peril, danger, duress, or difficulty that can be temporary or permanent.

B. Eligibility for Student Transportation

1. Service Address Determination. LCPS Transportation will determine each student's Service Address by using the primary address provided in the student information system within the school attendance zone boundary. Priority in scheduling is given to the bus that serves the address in the student information system. However, LCPS Transportation will accommodate transportation service to secondary parents who reside in the attendance zone, provided there is space available to do so.

2. Students with Special Transportation Needs under an Individualized Education Program or 504 Plan. Students enrolled in designated special needs programs shall be provided school bus transportation or other appropriate transportation between home and school in accordance with the students' IEP or 504 Plan.

3. Pupil Placements (Parental). Transportation is not provided for students who are parentally placed outside of their Attendance Zone, but students may ride existing school buses if they can safely access an existing bus stop and the request meets the "At No Cost" provision of School Board Policy 6210.

4. Employee Service. Employees and volunteers may be authorized to ride buses between home and school locations only with written permission from the Director of Transportation. Upon receiving such approval, LCPS Transportation shall advise the bus driver of the approval prior to the effective date for the individual to ride.

5. Transfers of Students for violations of School Board Student Conduct Policy 8220. When a student is transferred to a comparable school because of violations of School Board Student Conduct Policy, transportation to and from the school identified will be provided. However, such transportation will be revoked if misconduct occurs on the bus provided. Once revoked, such transportation shall be the responsibility of the student's parent(s) or guardian(s).

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6. Walk Route Distance. Walking routes will be measured to the front door entrance of a school from the property line of the homeowner for elementary, middle and high school. Additionally students residing up to one-tenth (0.1) for elementary or secondary students residing up to two-tenths (0.2) of a mile beyond a designated walk route distance may also be incorporated into that walk route distance, if doing so is considered particularly cost effective and/or efficient for the school division (such as extending the walk route distance to the end of a street or eliminating a relatively isolated bus stop) and would not require a school reassignment.

C. Special Safety Exceptions

1. LCPS Transportation will release a kindergarten student to anyone presenting the required matching tag with their students ID number written on it OR a special needs student on a special needs bus to a parent with sole or joint legal custody as listed in the Student Information System (i.e. a custodial parent). Visitation schedules do not control the LCPS Transportation decision to release a child to a custodial parent. LCPS Transportation will refuse to release the student to a parent/guardian only if presented with a valid court order that specifically denies the parent legal custody, prohibits contact with the student, or denies the parent unsupervised visitation as listed in the Student Information system.

2. LCPS Transportation will release a student requiring parental pick-up by the kindergarten tag OR the approved guardian's information on the transportation form for special needs students. LCPS Transportation shall require parental validation through the schools or directly to LCPS Transportation giving permission to release a special needs or kindergarten student to any other adult, including stepparents, adult family members, and other caregivers with whom the child does not reside or to someone that does not possess the documentation required above. In situations where parents share legal custody of the child, either custodial parent may give such written permission. A parent who is the subject of a valid court order that specifically denies the parent legal custody, prohibits contact with the student, or denies the parent unsupervised visitation may not authorize the release of the child to others so long as such court order remains in effect. LCPS Transportation personnel may require any person seeking access to a student to produce adequate identification, such as photo identification, sufficient to show that the person is entitled to such access.

D. School Walk Route Distance and Review and Modifications. The following criteria is used in establishing school walk route standards to bus stops and to school. The criteria are designed to maximize safety in light of the physical constraints that may be present. Student safety is ultimately the responsibility of the student's parent(s)/legal guardian when students are enroute to and from school and/or bus stops. Parents have the responsibility of selecting their children's walk routes to and from bus stops, schools, and home. Parents are also responsible for providing supervision that is appropriate for the student's age, maturity and conditions of the chosen route.

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1. Walk route distances are established as 1.0 mile for elementary students and 1.25 miles for secondary students. Distances are measured from the school's front door or the established bus stop, to the property line of student's home. These distances do not apply in the case that weather related inclement weather stops are utilized.

2. Un-signalized intersection crossings must have sufficient gaps in the traffic necessary to allow a student to cross a road safely.

3. Elementary students are not expected to walk along a roadway where the posted speed limit is greater than 35 mph unless there is a 10-foot buffer or a physical barrier present. A guardrail is considered an acceptable barrier. The exception is if the walk path is within a School Zone where there is a flashing school zone light present. Elementary children cannot cross a primary road unassisted if the speed limit is greater than 25 mph. Secondary students are not expected to cross primary roads if the posted speed limit is greater than 45 mph.

4. Students are expected to walk in residential (local) areas along and across streets or local roads, with or without sidewalks and crosswalks. Students are expected to walk along a primary road with sidewalks or shoulders. The responsibility of clearing sidewalks and walk paths of snow and ice rests upon residents/owners and homeowners' associations as required in Chapter 1022.1 of the Loudoun County Codified Ordinances, or the corresponding city or town equivalent.

5. Students are expected to walk along public or private pathways or walk routes with public access easements along or away from roads. This can include unsurfaced grass, dirt or gravel paths with a suitable base. Secondary students may be required to use residential service roads as walk routes. Crossing service roads does not generally require crosswalks due to lower speeds and limited traffic. Cul-de-sacs and residential service roads that have one point of vehicle entry can be used as walk routes and do not require sidewalks or crosswalks.

6. Student safety is ultimately the responsibility of the student's parent(s)/legal guardian when students are en route to and from school and/or bus stops. Parents have the responsibility of selecting their children's walk routes to and from bus stops, schools, and home. Parents are also responsible for providing supervision that is appropriate for the student's age, maturity and conditions of the chosen route.

E. Right of Appeals. Transportation conducts annual reviews of each school's walk zone based on new construction, changes in roadways, changes in school's attendance zone or other factors. Proposed walk zone changes are then reviewed by the Director of Transportation and the Chief Operations Officer. Proposed walk zone changes are sent to the residences involved and will be given (30) thirty days from date of notification to appeal. Response to appeals will be within (15) fifteen days of notification.

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F. Bus Runs

1. Bus Stops are generally located within the public right of way for roadways and streets. As such there are safety risks for students before and after they board the bus or enter the school if not eligible for transportation. Student safety is ultimately the responsibility of the student's parent(s)/legal guardian when students are en route to and from school and/or bus stops. Parents have the responsibility of selecting their children's walk routes to and from bus stops, schools, and home. Parents are also responsible for providing supervision that is appropriate for the student's age, maturity and conditions of the chosen route.

2. When loading or unloading students, the bus shall stop in the right-hand travel lane only at designated points where the bus can be clearly seen from a safe distance from both directions, and the driver shall keep the school bus warning devices in operation to warn approaching traffic to stop and allow students to cross the roadway safely. Students who must cross the road shall be required to walk to a point 10 feet or more in front of the bus, stop before reaching a position in line with the left side of the bus, and wait for a signal from the driver before crossing the roadway.

3. School bus routes, and bus travel patterns at school sites, shall be reviewed at least once each year. Bus routes shall be revised for unusual hazards, fuel conservation, and to assure maximum use of buses. Considerations:

- a. Bus stop locations will be chosen where the bus can be seen clearly for a safe distance from both directions while loading and unloading.
- b. Bus stop locations may be necessary where there is insufficient sight distance. In this case, Transportation requests warning signs from Virginia Department of Transportation or the town authorities in which the stop is located.
- c. Bus stops on highways, divided by a physical barrier, unpaved area, or five lane highway with turning lane, shall be located so that pupils will be picked up and discharged on the side of the road on which they live.
- d. Bus stop locations and walk routes will be reviewed annually for unusual safety hazards.

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G. Exceptions

1. Special Permission/Special Exception. School Board Policy 8155 requires parents of students who have been approved for Special Permission to provide their own transportation. However, parents may request transportation via School Board Policy 6210, "At No Cost" provision. The student's parent or legal guardian must provide a means of reliable transportation for the student to and from the school, as transportation of the student is not guaranteed by the school division.

2. Alternative Transportation is transportation to/from a location within the student's assigned school zone that is not the bus stop assigned to the residential address contained in the student information system record. It is available by request through ParentVue. Applications for Alternative Transportation are considered between September 16 and June 30 to allow for routing and assessment of availability. Alternative Transportation will not be available for the first six weeks of school unless requested by June 30 of the previous school year. An Alternate Transportation Request must be submitted by the parent or guardian and approved annually by Transportation. Submission does not constitute an approval of transportation. Alternate Transportation provided for special permission students must meet the guidance in School Board Policy 6210 "At No Cost" provision and may be added only if there is available space on the existing bus run, do not significantly alter the run time schedule and the locations are determined to be appropriate by the Transportation Division. Alternate Transportation requests previously granted must be renewed annually beginning April 1 through June 30 for the next school year.

H. Extracurricular Activities. Transportation for Extracurricular Activities are submitted by the requester to their school's designated transportation representative who places the request in Transportation's Trip Tracker. Depending on the trip, the Assistant Principal, Principal, or LCPS Administration then approves the trip. Once approved, transportation then fulfills the request with available resources. The driver of activity or extracurricular trip buses has the authority to make route adjustments due to inclement weather and/or hazardous road conditions.